Sushant Muttreja vs Serious Fraud Investigation Office on 26 May, 2025

$~19 & 20
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1287/2023
SUSHANT MUTTREJA

Through: Mr. Harish
Alankrita

versus

SERIOUS FRAUD INVESTIGATION OFFICE

Through: Mr. Amit T
Mr. Vedans
Divyanshu
Ayushi Sri
Ayush, Adv

20
+ BAIL APPLN. 1289/2023
NISHANT MUTTREJA

Through: Mr. Harish
Alankrita

versus

SERIOUS FRAUD INVESTIGATION OFFICE

Through: Mr. Amit T
Mr. Vedans
Divyanshu
Ayushi Sri
Ayush, Adv

CORAM:
HON'BLE MS. JUSTICE SHALINDER KAUR

This is a digitally signed order.
The authenticity of the order can be re-verified from Delhi High Court Order Portal by s
The Order is downloaded from the DHC Server on 30/06/2025 at 21:28:26

ORDER

% 26.05.2025

1. The present applications have been filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 on behalf of the petitioner seeking modification of the Order dated 23.12.2024 passed

by this Court in Bail Appln. No.1287/2023 titled as "Sushant Muttreja vs. Serious Fraud Investigation Office" and Bail Appln. No. 1289 titled as "Nishant Muttreja vs. Serious Fraud Investigation Office".

2. The learned counsel for the petitioners submits that despite the bail granted to the petitioners vide the above mentioned Order, they have not been able to furnish the bail bonds as they could not arrange for surety bonds of Rs. 10,00,000/- and that too with two sureties. He submits that the petitioners are involved in other 12 cases, in which they have been granted bail and they have arranged sureties and therefore, it is difficult for them to find two sureties each, as directed in the present case.

3. He submits that in cases bearing no. Bail Appln No.153/2022, Bail Appln No. 1333/2022, Bail Appln No. 1334/2022 and Bail Appln No. 158/2022 titled "Nishant Muttreja; and Sushant Muttreja vs. State of NCT of Delhi", though the bail order was to furnish bail bond and surety bond in the sum of Rs. 5,00,000, as the petitioner was not able to arrange for the sureties, the Orders were modified vide Order dated 15.02.2023 and they were directed to furnish surety bond for a sum of Rs. 2,00,000/-. The said condition was further modified vide This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/06/2025 at 21:28:26 Order dated 18.07.2023 and the surety amount was further reduced to Rs. 1,00,000/- in each of the FIRs.

4. The learned counsel submits that in these circumstances, the bail conditions imposed vide Order dated 23.12.2024 be modified and the petitioner be allowed to furnish personal bond for Rs. 2,00,000/- with one surety of like amount. He further submits that the charge- sheet has been filed and that the bail condition i.e. at paragraph 91(g) be also modified as it is difficult for the petitioner to appear twice a week before the concerned jurisdictional Police Station. The petitioner is trying to arrange for funds to clear the liabilities in the present case.

5. The status report has been filed on behalf of the respondent and a copy has been furnished to the opposite side.

6. However, it is narrated in the status report that the previous sureties furnished by the petitioners at the time of grant of interim bail have been verified and their addresses are correct.

7. In view of the above submissions, the Order dated 23.12.2024 is modified to the extent that the petitioners are directed to furnish personal bonds in the sum of Rs. 3,00,000/- (Rupees Three Lakhs only) with one surety of like amount instead of personal bonds in the sum of Rs. 10,00,000/- (Rupees Ten Lakhs only) with two sureties of like amount.

8. Furthermore, the condition in paragraph 91(g) in the Order dated 23.12.2024 is modified to the extent that instead of it being read as, "the applicants shall report to the concerned jurisdictional Police Station twice a week, i.e., on every Monday and Friday post their release; and", the order shall

read as "the applicants shall report to This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/06/2025 at 21:28:26 the concerned jurisdictional Police Station once a week, i.e., on every Saturday post their release; and"

9. The application is, accordingly, disposed of.

10. Copy of this Order be sent to Jail Superintendent for compliance.

SHALINDER KAUR, J MAY 26, 2025/ss/sk Click here to check corrigendum, if any This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/06/2025 at 21:28:26